

Introduction to 'Ilm al-Fiqh & the Hanbalī Madhhab

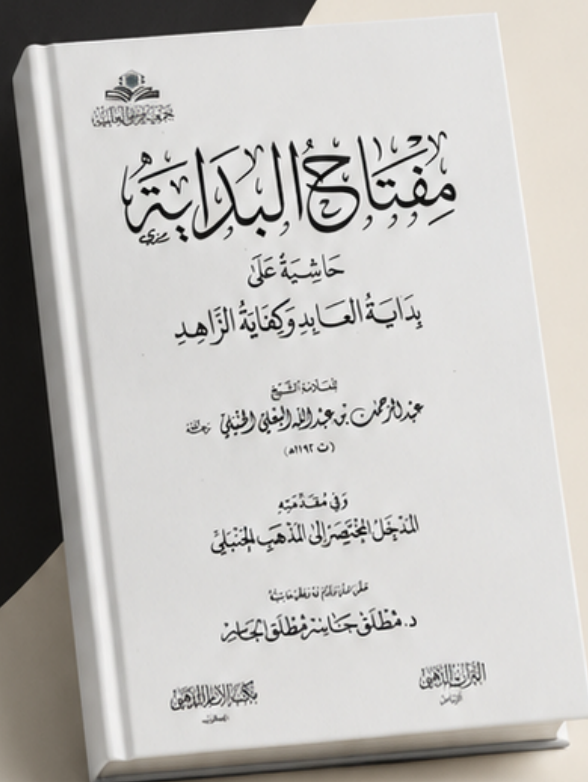
مَدْخُلُ الْمَذْهَبِ الْحَنْبَلِيِّ

Adopted from
Miftāḥ al-Bidāyah
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بَيْنُوفِضَالِ
ثَاقِبُ بْنُ فَاضِلٍ



Imām Ibn Mufliḥ al-Ḥanbalī said:

"As for those of high aspiration at its pinnacle, they are not satisfied except with the utmost, so they take from every discipline of knowledge what is essential, then make the bulk of their occupation fiqh, because **it is the master of the sciences.**"

Al-Furū' by Ibn Mufliḥ (2/356)

The 10 Introductory Principles of the Science of Fiqh

1. The Definition

Linguistically: Fiqh means al-fahm (understanding), the comprehension of the meaning of speech.

In the early Sharī'ah: Fiqh referred to all of the Sharī'ah sciences, including creed, which was known as al-fiqh al-akbar.

Technically: Knowledge of the sharī rulings connected to actions¹, derived from detailed evidences^{2,3}.

2. The Subject-Matter

The subject of fiqh is the acts of the legally responsible (al-mukallafīn), with respect to obligation, recommendation, prohibition, dislikedness, permissibility, validity, invalidity, and related rulings.

3. The Fruit

The greatest fruit of fiqh is salvation in this world and the next by knowing what Allāh loves and commands so that we perform it, and what He does not love so that we leave it.

Its fruits include:

- Correct performance of 'ibādāt and mu'āmalāt.
- Guarding against error in worship and servitude to Allāh.
- Relieving people's hardship by answering fiqhī questions.

4. The Relation

Fiqh is an independent, foundational sharī science. It is not subordinate to another science. Just as 'aqā'id rectifies beliefs, fiqh rectifies 'ibādāt and mu'āmalāt. Through both, the religion is completed.

5. The Merit

The Qur'ān and Sunnah contain many texts on the virtue of seeking sharī knowledge.

Among them is the saying of Allāh:

"Allāh witnesses that there is no deity except Him, and [so do] the angels and those of knowledge, [that He is] maintaining [creation] in justice."⁴

¹ Rulings connected to actions: such as prayer, transactions, and other deeds.

² Detailed evidences: the Qur'ān, the Sunnah, consensus (ijmā'), and analogy (qiyās).

³ al-Mustaṣfā by al-Ghazālī (1/12); al-Waraqāt by al-Juwaynī (p. 9).

⁴ Āl 'Imrān: 18

The Messenger of Allāh ﷺ said:

"Whoever treads a path seeking knowledge, Allāh will ease for him through it a path to Paradise."¹

Among the greatest of the sharī sciences is fiqh, the science of the ḥalāl and the ḥarām, through which one knows what Allāh commands so that it is done, and what He forbids so that it is left.

6. The Founder

The science of fiqh has no single founder. It began with the prophetic mission, as the Prophet ﷺ taught the Companions what is ḥalāl and ḥarām, what should be done and what should be avoided.

Likewise, no single person can be identified as the first to compile fiqh in writing.

7. The Name

Its primary name is ‘ilm al-fiqh. It is also called ‘ilm al-aḥkām and ‘ilm al-ḥalāl wa-al-ḥarām.

8. The Source

Fiqh derives from the sources of the Sharī‘ah: the Qur’ān, the Sunnah, ijmā‘, qiyās, and the ijtihād of the mujtahidūn through the remaining evidences, including al-istiṣlāḥ, the saying of the Companion, and the other evidences elaborated by the uṣūliyyūn.

9. The Ruling

Learning fiqh is of two types:

Fard ‘ayn (individual obligation): Knowledge every Muslim must learn for the validity of obligatory acts of worship, such as the rulings of prayer.

Fard kifāya (collective obligation): Knowledge that must exist within the Muslim community, though not every individual must learn it, such as farā’id (inheritance law).

10. The Issues

The issues of fiqh are generally divided into four categories:

1. ‘Ibādāt (acts of worship).
2. Mu‘āmalāt (transactions).
3. Nikāḥ (marriage) and its related rulings, such as divorce.
4. Jarāyim (crimes), prescribed punishments, and related matters.

The History of the Science of Fiqh

The Beginning of Fatwa

Fatwā began during the lifetime of the Prophet ﷺ. After his death, the need for ijtihād increased as new issues arose. The Companions derived rulings from the Qur’ān and the Sunnah and gave fatāwā accordingly.

¹ Narrated by Muslim (2699).

The leading Companions then spread throughout the Muslim lands:

- ‘Abd Allāh ibn Mas‘ūd to al-Kūfa.
- ‘Abd Allāh ibn ‘Abbās to Mecca.
- ‘Abd Allāh ibn ‘Umar to Medina.
- ‘Amr ibn al-‘Āṣ to Egypt.
- A group of Companions to al-Shām.

The Tābi‘īn gathered around them and inherited their knowledge.

The Fiqhī Schools After the Companions

Two major fiqhī schools emerged:

1. Ahl al-Ra’y (The People of Reasoned Opinion)

This school developed in al-Kūfa because of the relatively small number of Companions, the abundance of new issues, and the distance from the centers of ḥadīth. This led to greater reliance on reasoned opinion in issuing fatāwā. Among its leading Tābi‘ī scholars was Ibrāhīm al-Nakha‘ī.

2. Ahl al-Athar (The People of Transmitted Reports)

This school developed in the Hijāz, where the abundance of Companions and narrations reduced the need for extensive opinion. The slower pace of change also differed from Iraq, where rapid expansion and interaction with Persia and Byzantium produced many new issues.

Neither of the two is distinguished from the other in need, and neither is self-sufficient from the other.

The Emergence of the Fiqhī Madhāhib

From Ahl al-Ra’y emerged Imām Abū Hanīfa (d. 150 AH), who was influenced by Ibrāhīm al-Nakha‘ī. His distinguished students, including Muḥammad ibn al-Ḥasan al-Shaybānī and Abū Yūsuf, established the Ḥanafī madhhab as the continuation of Ahl al-Ra’y.

In Medina appeared Imām Mālik ibn Anas (d. 179 AH), followed by his student Imām al-Shāfi‘ī (d. 204 AH), who later traveled to Baghdad and taught Imām Aḥmad ibn Ḥanbal (d. 241 AH).

Al-Madhhab

Linguistically: Madhhab is derived from al-dhahāb (الذَّهَاب), meaning “going”. It may be a noun of place, as in أَينَ مَذْهَبُكَ؟ ("Where are you going?"), a noun of time, or a verbal noun, as in مَذْهَبًا حَسَنًا ("a good going")

Technically: The ijtihādī opinion¹ which the mujtahid held based on evidence, died holding it², and what is appended to that³.

¹ Excluding non-ijtihādī matters. Ijmā‘ is not called a madhhab. For example, we do not say: the madhhab of Imām Aḥmad is the obligation of prayer.

² Excluding any opinion from which the imām later retracted.

³ Includes derived rulings that, although not explicitly stated by the imām, are based upon his established principles and legal foundations.

Madhabiyya

Madhabiyya has three meanings, and no ruling may be passed on it without distinguishing between them.

1. Absolute Taqlīd

Following a scholar, even in a single issue, and being considered a follower of his madhhab in that matter.

The scholars differed over its permissibility, and in some cases its obligation. Muwaffaq al-Dīn Ibn Qudāma stated that taqlīd in the furū' is permissible by ijma', and is obligatory for the layperson.¹

2. Adhering to a Madhhab in Studying Fiqh

Committing to a particular madhhab while studying fiqh by following its methodology and progressing through its texts from concise works to larger ones.

This type has no problem either. It was the way of the early and later scholars and is a professional obligation (wājib ṣinā'i) for anyone seeking to become a faqīh.

3. Adhering to a Madhhab in 'Ibāda

Committing to one of the four madhāhib in worship, following both its dispensations (rukhaṣ) and stricter rulings ('azā'im) without departing from it.

The scholars differed on whether this is obligatory. Ibn al-Ṣalāḥ related two opinions from Ibn Burhān:

1. It is not obligatory, just as Muslims in the early generations were not required to confine themselves to one scholar. This was the view preferred by Ibn al-Qayyim.²

2. It is obligatory. This was the position of Abū al-Ḥasan Ilkiyā. Its reasoning is that unrestricted movement between madhāhib could lead a person to follow concessions according to personal desire, weakening the binding force of taklīf.³

A Biography of al-Imām Aḥmad

He is Abū 'Abd Allāh Aḥmad ibn Muḥammad ibn Ḥanbal ibn Hilāl ibn Asad ibn Idrīs ibn 'Abd Allāh ibn Ḥayyān ibn 'Abd Allāh ibn Anas ibn 'Awf ibn Qāsiṭ ibn Māzin ibn Shaybān ibn Dhuhl ibn Tha'laba ibn 'Ukāba ibn Ṣa'b ibn 'Alī ibn Bakr ibn Wā'il. He is Shaybānī, of the lineage of Rabī'a ibn Nizār ibn Ma'add ibn 'Adnān.

¹ See Rawḍat al-Nāzir (p. 383)

² I'lām al-Muwaqqi'in by Ibn al-Qayyim (6/203).

³ Adab al-Muftī by Ibn al-Ṣalāḥ (pp. 287–288).

He was born in Baghdad in Rabīʿ al-Awwal, 164 AH. His father died when he was young, so he devoted himself to ḥadīth and fiqh al-āthār. His brilliance appeared from an early age, to the point that ʿAbd al-Raḥmān ibn Maḥdī (d. 198 AH) said: "This boy was nearly an imām while still in his mother's womb."¹

He grew up in the capital of the ʿAbbāsīd Caliphate, sought knowledge, and studied with Imām al-Shāfiʿī. Imām al-Shāfiʿī said: "Aḥmad is an imām in eight qualities: an imām in ḥadīth, fiqh, language, Qurʾān, poverty, asceticism, scrupulousness, and the Sunnah."²

He excelled in fiqh, tafsīr, and above all ḥadīth. He compiled a complete tafsīr of the Qurʾān from the statements of the Companions and the Tābiʿīn, though it is now lost. His Musnad contains more than thirty thousand aḥādīth. He advised his son ʿAbd Allāh: "Adhere to this Musnad, for it will be an imām for the people."³

He became the standard-bearer of the Sunnah and the most knowledgeable of his time regarding the speech of the Prophet ﷺ, his Companions, and the Tābiʿīn. He was distinguished by the breadth of his memorization, reportedly three hundred thousand aḥādīth, his mastery in distinguishing authentic from weak narrations, and his deep understanding of the fiqh, meanings, and legal implications of ḥadīth. He adhered to every authentic Sunnah unless opposed by a decisive counter-argument, and only left what was unauthentic or outweighed by stronger evidence.⁴

Students of al-Imām Aḥmad

Allāh blessed Imām Aḥmad with distinguished students who wrote down from him everything they heard from him of fatāwā. The most prominent of those were seven:

1. ʿAbd Allāh ibn Aḥmad (d. 290 AH) — the son of Imām Aḥmad.
2. Šāliḥ ibn Aḥmad (d. 266 AH) — the son of Imām Aḥmad.
3. Ḥanbal ibn Ishāq (d. 273 AH) — the cousin of Imām Aḥmad.
4. Aḥmad ibn Ḥumayd, Abū Ṭālib al-Mushkānī (d. 244 AH).
5. Ibrāhīm ibn Ishāq al-Ḥarbī (d. 285 AH).
6. Abū Bakr al-Marrūdhī (d. 275 AH).
7. Abū al-Ḥasan al-Maymūnī (d. 274 AH).⁵

¹ Al-Jawhar al-Muḥaṣṣal by al-Saʿdī (p. 78).

² Ṭabaqāt al-Ḥanābila by Ibn Abī Yaʿlā (1/10).

³ Manāqib al-Imām Aḥmad by Ibn al-Jawzī (p. 248).

⁴ Risālat al-Radd ʿalā man Ittabaʿa Ghayr al-Madhāhib al-Arbaʿa by Ibn Rajab (pp. 283–287).

⁵ Ḥāshiyat al-Khalwatī ʿalā Muntahā al-Irādāt (5/506)

The Stages of the Ḥanbalī Madhhab

The First Stage

This stage begins with Imām Aḥmad ibn Ḥanbal (d. 241 AH) and ends with Imām al-Ḥasan ibn Ḥamīd (d. 403 AH), approximately 150 years. This era is the founding era, in which the opinions and fatwas of Imām Aḥmad ibn Ḥanbal were collected and gathered into the book al-Jāmi‘, followed by the composition of al-Khiraqī's Mukhtaṣar, and then commentaries upon it. The final figure of this era was Imām al-Ḥasan ibn Ḥamīd, who has a published work titled Tahdhīb al-Ajwibah, in two volumes, considered one of the earliest works on uṣūl al-fiqh within the Hanbalī madhhab.

The Second Stage

This stage begins with the students of al-Ḥasan ibn Ḥamīd, the most famous being Qāḍī Abū Ya‘lā (d. 458 AH), and ends with al-Burhān ibn Mufliḥ (d. 883 AH), a period of nearly 400 years, the richest period the Hanbalī madhhab passed through.

Among the luminaries of this era are: Imām al-‘Ukbarī; Ibn Abī Mūsā al-Sharīf al-Hāshimī; al-Sharīf ibn Abī Ja‘far; Ibn al-Bannā; al-Kalwadhānī; Ibn ‘Aqīl; Ibn al-Jawzī; Ibn Manī‘; Majd al-Dīn ibn Taymiyyah. Then come the Maqādisah: Shaykh ‘Abd al-Ghanī al-Maqdisī; al-Muwaffaq Abū ‘Umar ibn Qudāmah; Imām al-Muwaffaq al-Dīn ibn Qudāmah; Abū al-Faraj ‘Abd al-Raḥmān ibn Abī ‘Umar. Then comes Imām Shaykh al-Islām Ibn Taymiyyah, and his students Ibn al-Qayyim and Ibn ‘Abd al-Hādī (d. 744 AH), and after them al-Ḥāfiẓ, Imām Ibn Rajab al-Ḥanbalī (d. 795 AH).

The Third Stage

It begins with Imām al-Qāḍī ‘Alā’ al-Dīn al-Mardāwī (d. 885 AH), whose al-Inṣāf fī Ma‘rifat al-Rājiḥ min al-Khilāf and al-Tanqīḥ became the foundation of the later Hanbalī madhhab.

After him came Imām Mūsā ibn Aḥmad al-Ḥajjāwī (d. 968 AH), author of al-Iqnā‘ and Zād al-Mustaqni‘, followed by Ibn al-Najjār al-Futūḥī (d. 972 AH), author of Muntahā al-Irādāt. Al-Iqnā‘ and al-Muntahā became the primary texts of the later Hanbalīs and the basis of fatwā, receiving numerous commentaries, abridgments, and glosses.

Among the later scholars were Shaykh Mar‘ī ibn Yūsuf al-Karmī (d. 1033 AH), Imām Manṣūr ibn Yūnus al-Bahūtī (d. 1051 AH), the concluding scholar of the madhhab, Shams al-Dīn Ibn Balbān (d. 1083 AH), Shaykh Muḥammad ibn Aḥmad al-Khalwatī (d. 1088 AH), Shaykh ‘Uthmān ibn Qā‘id al-Najdī (d. 1097 AH), Shaykh ‘Abd al-Qādir al-Taghlabī (d. 1135 AH), author of Nayl al-Ma‘ārib Sharḥ Dalīl al-Ṭālib, al-Saffārīnī (d. 1188 AH), and Shaykh ‘Abd Allāh ibn ‘Abd al-Raḥmān Abā Buṭayn (d. 1282 AH).

Methodology of Study

The First Stage

The student studies the text *Bidāyat al-‘Ābid wa-Kifāyat al-Zāhid* by Shaykh al-Ba‘lī.

The Second Stage

Study of the text *‘Umdat al-Ṭālib* by Imām Manṣūr al-Bahūtī.

The Third Stage

Study either of the following, as each suffices in place of the other:

- *Hidāyat al-Rāghib Sharḥ ‘Umdat al-Ṭālib* by ‘Uthmān al-Najdī.
- *Al-Rawḍ al-Murbi‘ fī Sharḥ Zād al-Mustaḥṣin* by Manṣūr al-Bahūtī.

After mastering *al-Rawḍ al-Murbi‘*, proceed to its ḥawāshī (glosses), among the most important being:

- The ḥāshiya of Shaykh ‘Abd al-Wahhāb ibn Fayrūz.
- The ḥāshiya of Shaykh Abā Buṭayn.
- The ḥāshiya of Shaykh Ibn Qāsim.
- The ḥāshiya of Shaykh al-‘Anqarī.

The Fourth Stage

Study *Muntahā al-Īrādāt* by Ibn al-Najjār al-Futūḥī together with its commentary by Shaykh Manṣūr al-Bahūtī. After mastering it, study its ḥawāshī (glosses), especially:

- The ḥāshiya of Shaykh Manṣūr al-Bahūtī.
- The ḥāshiya of Shaykh ‘Uthmān al-Najdī.
- The ḥāshiya of al-Khalwatī.
- The ḥāshiya of Ibn Ḥumayd, author of *al-Suḥub al-Wābila*.

Once this is mastered, one is qualified to read from the books of the madhhab and beyond. The student also reviews the entirety of fiqh regularly and not allow a year to pass without doing so.

After becoming firmly grounded in the later works of the madhhab, one should then return to the earlier works, such as the books of al-Muwaffaq Ibn Qudāmah and the intermediate scholars, to avoid confusion between the earlier and later positions of the madhhab.

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